

MULRY v. LAKESIDE VENTURES, LLC, et al

Case No. 23CV47109

**PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED
AND REQUEST FOR SANCTIONS**

This is an action asserting claims for Wrongful and Constructive Eviction, Intentional and Negligent Infliction of Emotional Distress, and Negligence, *inter alia*, against four named defendants, none of whom has filed any responsive pleadings. Default was entered as to defendant Hurley on January 23, 2024.

On January 3, 2024, various discovery requests, namely Requests for Admission, Form and Special Interrogatories, and Requests for Production, were served on said defendant. Subsequently, plaintiff filed this Motion to Deem Requests for Admissions True on February 9, 2024.

Plaintiff took defendant Hurley's default before bringing this motion. The default divested the court of jurisdiction to grant the requested relief. Once defaulted, a party has no further right or obligation to participate in the case unless default is vacated. There is no right to discovery by notice on defaulted parties. In California, entry of default completely cuts off a party's right to appear in the action (e.g., take discovery, file motions other than a motion for relief from default or contest the material allegations of the complaint for purposes of the action). (See *Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3rd 381, 385-86.)

Based on the foregoing, the motion is DENIED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order in conformity with this Ruling.